

Questions about this communication ?

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Date

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Reference P49918EP-D1-PCT	Application No./Patent No. 17191704.0 - 1112 / 3311818
Applicant/Proprietor Pharmacyclics, LLC	

Noting of loss of rights pursuant to Rule 112(1) EPC

The European patent application is deemed to be withdrawn under Article 94(4) EPC, because the invitation to file observations on the communication from the Examining Division dated 07.06.19 was not complied with.

Means of redress

Request for a decision (R. 112(2) EPC)

If the applicant considers that the finding of the European Patent Office is inaccurate, he may, within a (non-extendable) period of **two months** after notification of this communication, apply in writing for a decision on the matter. The application can only lead to the finding being reversed if this does not actually correspond to the factual or legal situation.

Further processing (Art. 121 EPC)

The legal consequence of the failure to observe the time limit shall be deemed not to have ensued if, within a (non-extendable) period of **two months** after notification of this communication, further processing is requested by payment of the fee prescribed under Article 2(1)12 of the Rules relating to Fees and the omitted act is completed (R. 135(1) EPC).

Making payments

For payments made via deposit account, please note that as from 1 December 2017 debit orders will only be carried out if filed in an electronically processable format (xml), using an accepted means of filing as laid down in the Arrangements for deposit accounts (ADA), published in the Supplementary publication in the Official Journal.

All relevant information related to the modes of payment of fees to the EPO can be retrieved from the EPO website at **"Making Payments"**.

Information concerning fee amounts

Procedural fees are usually adjusted every two years, on even years, with effect from 1 April. Therefore, before making a payment, parties should verify the amounts actually due on the date of payment using the applicable version of the Schedule of fees and expenses, published as a Supplement to the Official Journal of the EPO, available on the EPO website (www.epo.org) at www.epo.org/schedule-of-fees. The "Schedule of fees" table allows the viewing, downloading and searching of individual fee amounts, both current and previous.

Important note to users of the automatic debiting procedure

The fee for further processing will be debited automatically on the day on which the above-mentioned omitted act is completed.

For the Examining Division